

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Riddle	Team: Squad #05	CCRB Case #: 202106664	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/21/2021 1:15 PM	Location of Incident: 121st Precinct stationhouse	18 Mo. SOL 4/21/2023	Precinct: 121		
Date/Time CV Reported Sat, 10/23/2021 5:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/02/2021 10:02 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert Rastetter	03718	953303	121 PCT
2. PO Christopher Schiro	15133	956244	121 PCT
3. PO Evan Fernandez	25000	963026	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Evan Fernandez	Abuse: Police Officer Evan Fernandez refused to provide his name to § 87(2)(b)	A . Unfounded
B . PO Evan Fernandez	Abuse: Police Officer Evan Fernandez refused to provide his shield number to § 87(2)(b)	B . Unfounded
C . PO Christopher Schiro	Abuse: Police Officer Christopher Schiro refused to provide his name to § 87(2)(b)	C . Unfounded
D . PO Christopher Schiro	Abuse: Police Officer Christopher Schiro refused to provide his shield number to § 87(2)(b)	D . Unfounded
E . SGT Robert Rastetter	Abuse: Sergeant Robert Rastetter searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . SGT Robert Rastetter	Abuse: Sergeant Robert Rastetter damaged § 87(2)(b)'s property.	F . Unsubstantiated
§ 87(4-b), § 87(2)(g)		

Case Summary

On October 23, 2021, § 87(2)(b) filed this complaint with IAB over the phone. This case was received at the CCRB on November 2, 2021, under original log #21-23856.

On October 21, 2021, at approximately 1:15 p.m., in the vicinity of North 4 Street in Staten Island, PO Evan Fernandez, PO Christopher Schiro, and Sgt. Robert Rastetter, all of the 121st Precinct, detained § 87(2)(b) during a vehicle stop after learning that there was an active probable cause I-Card for him. They removed § 87(2)(b) and his vehicle to the 121st Precinct stationhouse. While transporting § 87(2)(b) to the stationhouse, PO Schiro and PO Fernandez allegedly refused to provide § 87(2)(b) with their names or shield numbers (**Allegations A-D: Abuse of Authority, unfounded**). While § 87(2)(b) was in custody, Sgt. Rastetter searched his vehicle (**Allegation E: Abuse of Authority, substantiated**). Sgt. Rastetter allegedly caused damage to the front middle armrest and console, the glove compartment, and one of the seats (**Allegation F: Abuse of Authority, unable to determine**). § 87(4-b), § 87(2)(g)

An arrest report was prepared for § 87(2)(b) regarding this incident § 87(2)(a) 160.50

The investigation obtained BWC footage that depicts § 87(2)(b)'s initial arrest and his interactions with officers in the stationhouse (**BR02-BR05**, summarized at **BR06-09**). § 87(4-b), § 87(2)(g) All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

PO Schiro has since been promoted to the rank of sergeant and reassigned to the 120th Precinct.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Evan Fernandez refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Evan Fernandez refused to provide his shield number to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Christopher Schiro refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Christopher Schiro refused to provide his shield number to § 87(2)(b)

During his initial phone statement (**BR10**) and his interview (**BR11**), § 87(2)(b) alleged that he requested PO Fernandez and PO Schiro's names and shield numbers when they were transporting him from the scene of the arrest to the 121st Precinct stationhouse, and both officers ignored these requests.

PO Fernandez and PO Schiro's BWC footage (**BR02, BR04**) captures the entirety of this incident beginning from the initial car stop to their arrival at the 121st stationhouse with § 87(2)(b). PO Fernandez's BWC (beginning at 11:08 until 19:03) captures the entirety of the car ride to the stationhouse and at no point during this portion of the footage does § 87(2)(b) request either PO Schiro or PO Fernandez's names or shield numbers.

§ 87(2)(g)

It is

therefore recommended that **Allegations A-D** be closed as **unfounded**.

Allegation (E) Abuse of Authority: Sergeant Robert Rastetter searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (F) Abuse of Authority: Sergeant Robert Rastetter damaged § 87(2)(b)'s property.

It is undisputed that Sgt. Rastetter searched § 87(2)(b)'s vehicle once it was transported back to the 121st Precinct stationhouse.

§ 87(2)(b) recounted that his mother, § 87(2)(b) came to the stationhouse and took possession of his vehicle. When § 87(2)(b) was released from custody, he found that the door to his glove compartment had been entirely removed from its hinges, that the pocket behind one of his front seats had been torn off on one side, and that the lid to the front middle console had been entirely ripped off its hinges. The investigation obtained three photos that § 87(2)(b) originally provided to IAB with his original complaint (**BR14**). They appear to show the glove compartment door lying on the floor of the vehicle and the center console without its top lid. The third photograph may show the seatback pocket § 87(2)(b) referenced, but it is unclear. In a follow-up call (**BR12**), § 87(2)(b) stated that he could not estimate the total cost of the alleged damage to his vehicle and that he had not taken the vehicle to be repaired because he could not afford to do so. § 87(2)(b) confirmed that the doors to the glove compartment and the middle console could not simply be reattached. Despite multiple requests, § 87(2)(b) ultimately refused to provide the CCRB with original photos of the alleged damage his vehicle had sustained.

§ 87(2)(b) (**BR13**) testified that she found that papers and documents had been strewn about the car's seats and floors, and that there was extensive damage to the interior of the vehicle. § 87(2)(b) stated that the glove compartment had been completely torn off the hinges, that the pocket on the back of the driver's seat was partially torn off and only hanging on by one side, and that the dashboard had been "ripped out." § 87(2)(b) also noted that the lid to the middle console in the front of the vehicle had been completely torn off the hinges and the sun blockers had been damaged.

Sgt. Rastetter's BWC footage (**BR08**, from 12:36 until 19:22) captures him driving § 87(2)(b)'s vehicle to the stationhouse. The glove box and middle console are clearly captured in the footage, and they are shown to be intact and with no damage. § 87(4-b), § 87(2)(g)

Sgt. Rastetter (**BR16**) testified that, in the course of locating the active I-Card during the initial vehicle stop, he found that § 87(2)(b) was the subject of a Domestic Incident Report (DIR) which indicated that § 87(2)(b) had access to firearms. The investigation obtained a DIR, dating from § 87(2)(b), in which an ex-partner of § 87(2)(b) reported that he had threatened to kill her and that he had access to a firearm (**BR15**). After lodging § 87(2)(b) in the cells and notifying the 90th Precinct Detective Squad, Sgt. Rastetter supervised PO Schiro and PO Fernandez in searching § 87(2)(b)'s vehicle for a firearm. Sgt. Rastetter was looking for a firearm based upon the information contained in the DIR. Sgt. Rastetter testified that he had no other reason to believe that there was a firearm in the vehicle beyond the DIR. The officers did not find a firearm in the vehicle and did not remove anything from it. Sgt. Rastetter explicitly denied damaging or witnessing any officers cause any damage to § 87(2)(b)'s vehicle. When presented with photos of the alleged damage provided by § 87(2)(b) Sgt. Rastetter again denied ever witnessing or causing this damage to the vehicle.

When officers have arrested the occupant of an automobile, and they have reason to believe that the car may contain evidence related to the crime for which the occupant was arrested, they may contemporaneously search the passenger compartment, including any containers found therein. *People v. Blasich*, 73 N.Y.2d 673 (1989) (**BR17**). Officers may also conduct such a vehicle search, subsequent to the arrest, if they have probable cause to believe the vehicle contains a weapon. *People v. Ellis*, 62 N.Y.2d 393 (1984) (**BR18**).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unable to determine**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one additional CCRB complaint and has been named as a victim of two allegations (**BR20**):
 - 200600964 involved an allegation of question and/or stop, which was exonerated, and an allegation of physical force, which was closed as officer(s) unidentified.
- Sgt. Schiro has been a member of the NYPD for eight years and has been a subject in six additional CCRB complaints and 13 allegations, of which one was substantiated:
 - 201903838 involved a substantiated allegation of failure to provide a business card against Sgt. Schiro. The Board recommended Command-Level Instructions and the NYPD imposed Instructions. § 87(2)(g)
- PO Fernandez has been a member of the NYPD for five years and has been a subject in three additional CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Rastetter has been a member of the NYPD for ten years and has been a subject in two additional CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

